

## 24STCV02208 24STCV02208

County: los-angeles

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Department: 516

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Judge James I. Montgomery

Department 516

Hearing Date: July 9, 2026

Case Name: Garcia v. Ramirez, et al.

Case

No.: 24STCV02208

Matter: Motion for Summary Judgment

Moving

Party: Defendants Marco

Ramirez and Maria Ramirez

Responding Party: Plaintiff Rebecca Garcia

Tentative Ruling: Defendants

Marco Ramirez and Maria Ramirez's motion for summary judgment is denied.

Plaintiff

Rebecca Garcia filed this action against Defendants Marco Ramirez, Maria Ramirez (collectively, "Ramirez Defendants"), Erika Coronado, and Does 1 through 20. The Complaint alleges three causes of action for: (1) strict liability pursuant to Civil Code section 3342; (2) negligence; and (3) strict

liability (dog with known dangerous propensities).

Ramirez Defendants move for summary judgment. Plaintiff opposes.

#### Legal Standard

“The party

moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.

(Ibid.)

“

When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467; Code Civ. Proc. § 437c, subd. (c).)

#### Analysis

Ramirez

Defendants move for summary judgment against Plaintiff Rebecca Garcia’s Complaint. Defendants contend that Plaintiff’s causes of action against them have no merit because there are no triable issues of material fact that Defendants owned the Subject Dog or had knowledge of any previous dangerous propensities of the Subject Dog, and under California law did not owe Plaintiff a duty.

#### Preliminary

Matters

As an

initial matter, the Court notes that the notice of motion states only that Defendants seek summary judgment and does not, in the alternative, state a

motion for summary adjudication. (See Notice of Motion.)

A

“fundamental principle of summary judgment law that was disregarded—that the procedural rules required by statute must be strictly applied.” (California-American Water Co. v. Marina Coast Water Dist. (2022) 86 Cal.App.5th 1272, 1296.)

““It is

elemental that a notice of motion must state in writing the ‘grounds upon which it will be made.’ [Citations.] Only the ground specified in the notice of motion may be considered by the trial court. [Citations.] This rule has been held to be especially true in the case of motions for summary adjudication of issues. [Citation.]” [Citation.] The Gonzales court continued, “The language in Code of Civil Procedure section 437c, subdivision (f) makes it clear that a motion for summary adjudication cannot be considered by the court unless the party bringing the motion duly gives notice that summary adjudication is being sought. [Citations.] ‘If a party desires adjudication of particular issues or subissues, that party must make its intentions clear in the motion....’ [Citation.] There is a sound reason for this rule: ‘... the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that an issue-by-issue adjudication might be ordered if summary judgment was denied.’ [Citation.]” (Jimenez v. Protective Life Ins. Co. (1992) 8 Cal.App.4th 528, 534 (citations omitted).) “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Court, rule 3.1350(b).)

Because Defendants’ notice of motion does not also seek summary adjudication, as long as Defendants do not meet their burden on any cause of action, Defendants’ motion for summary judgment must be denied.

Merits

of Defendants’ Motion for Summary Judgment

Defendants

contend that each and every cause of action have no merit. The evidence before

the Court does not support Defendants' argument.

#### Defendants

argue that, as landowners under Civil Code section 3342, they do not owe Plaintiff a duty because they do not own the dog. While under a strict liability theory, there may be truth to this claim if it were undisputed that Defendants are not the owners of the Subject Dog. But under a negligence theory, Defendants do not present evidence to support that there is no triable issue of material fact regarding whether they owed Plaintiff a duty. Moreover, the Court notes that Defendants presented only eight material facts in support of their motion. (See Separate Statement.)

#### The undisputed

facts in the present motion are that on April 2, 2022, Plaintiff alleges that while delivering a package to Defendants' home, she was bitten by a dog ("Subject Dog") ("Subject Incident"). (Undisputed Material Fact ("UMF") 1, 2) Defendants are the owners of the Subject Premises, 2510 E. Gleason Avenue, Los Angeles, California 90033 ("Subject Premises"), where the Subject Incident occurred. (UMF 3) On April 2, 2022, Erica Coronado brought the Subject Dog to the Subject Premises for a visit. (UMF 6) Furthermore, the Subject Dog has never bitten any person or attempted to bite any person or dog prior to the Subject Incident. (UMF 7.) However, Defendants' Separate Statement only has one material facts regarding whether Defendants knew that the Subject Dog had dangerous and vicious propensities. (See UMF 8) Defendants do not meet their burden of production to show that they did not, in fact, have knowledge of the Subject Dog's dangerous propensities.

#### Furthermore,

as to the negligence cause of action, the evidence before the Court does not support Defendants' argument that Plaintiff's claim against it is without merit.

#### "Under

California law, a landlord owes a duty of care to his tenant's invitees to prevent injury from the tenant's vicious dog when the landlord has "actual knowledge" of the dog's vicious nature in time to protect against the dangerous condition on his property." (Yuzon v. Collins (2004) 116 Cal.App.4th 149, 152.) "A common element in these exceptions is that either at or after the time possession is given to the tenant the landlord retains or acquires a recognizable degree of control over the dangerous condition with a concomitant

right and power to obviate the condition and prevent the injury. In these situations, the law imposes on the landlord a duty to use ordinary care to eliminate the condition with resulting liability for injuries caused by his failure so to act." (Uccello v. Laudenslayer (1975) 44 Cal.App.3d 504, 511.)

#### Defendants

rely on Yuzcon and Uccello to argue that they are not liable. However, this argument is without merit because the separate statement lacks evidence that on the day of the Subject Incident the alleged owner of the Subject Dog, Erica Coronado, was a tenant. (See UMF 4-6; Defendants Ex. B., 18:1-5, 27:1-7.) The produced evidence supports the finding that after 2020 Coronado was no longer a tenant at the Subject Property. (See UMF 4; Defendants Ex. C, 24:14-18; 46:5-7.) Thus, Uccello and Yuzcon do not support Defendants' argument that the negligence claim against them is without merit. Defendants do not make further argument to argue that there is no triable issue of material fact regarding whether they owed Plaintiff a duty of care under a negligence theory as owners of the Subject Property.

#### Thus, Defendants

fail to meet their burden of proof as to the negligence cause of action. Because Defendants fail to produce admissible evidence that no triable issue of material fact exists as to the negligence cause of action, the burden does not shift to Plaintiff. Because the burden does not shift and Defendants only filed their motion as a motion for summary judgment, their entire motion fails. The Court will not address the merits of Defendants' arguments as to the remaining causes of action.

#### Conclusion

#### Defendants

Marco Ramirez and Maria Ramirez's motion for summary judgment is denied.